

RCVD - USDC - CHAS, SC
 2026 APR 8 AM 10:41

IN THE UNITED STATES DISTRICT COURT
 DISTRICT OF SOUTH CAROLINA
 CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

PLAINTIFF'S OBJECTIONS TO REPORT AND RECOMMENDATION (ECF 309)

Plaintiff Debra Nelson, proceeding pro se, respectfully submits these Objections to the Report and Recommendation (ECF 309), which recommends dismissal of this action.

I. STANDARD OF REVIEW

Pursuant to 28 U.S.C. § 636(b)(1), Plaintiff requests **de novo review** of all portions of the Report and Recommendation to which objections are made.

II. PLAINTIFF DID NOT REFUSE DISCOVERY

The Report characterizes Plaintiff's conduct as noncompliance. That characterization is incorrect.

Plaintiff participated in discovery and made a good-faith effort to comply, including producing a clinical summary from her treating therapist addressing the emotional distress at issue in this case.

Case No. 2:25-cv-00405-RMG-MGB

Plaintiff further provided the same clinical summary in response to a request from the Office of Federal Contract Compliance Programs (OFCCP) investigator Arreola in connection with her federal complaint. The investigator specifically requested documentation from Plaintiff's therapist, and Plaintiff submitted the clinical summary in response to that request.

Plaintiff did not refuse discovery. Plaintiff objected only to demands that were overbroad, intrusive, and unrelated to the claims, including demands for unrestricted access to her private medical information.

Plaintiff previously addressed Defendants' allegations of noncompliance in a filed Notice of Clarification Regarding Compliance with Court-Ordered Discovery (ECF 299), in which Plaintiff explained that responsive materials were produced and that any remaining materials were not subject to production. That filing has not been substantively addressed, yet the same allegations are now being used as a basis for recommending dismissal.

III. DEFENDANTS DEMANDED FULL ACCESS TO PLAINTIFF'S MEDICAL HISTORY WITHOUT JUSTIFICATION

Defendants demanded that Plaintiff execute blanket authorizations granting unrestricted access to her entire medical history.

These demands were not limited by time, condition, or relevance, and were not tailored to the claims at issue.

There was no justifiable basis for requiring full disclosure of Plaintiff's entire medical history in a case involving emotional distress arising from employment.

Plaintiff produced a targeted clinical summary addressing the relevant issues. Plaintiff's refusal to authorize unrestricted access to unrelated and highly sensitive medical information was reasonable.

IV. ECF 251 FORCED AN IMPROPER AND UNREASONABLE CHOICE

The Court's December 15 Order (ECF 251) compelled Plaintiff to choose between:

1. Surrendering unrestricted access to her entire medical history; or

Case No. 2:25-cv-00405-RMG-MGB

2. Abandoning her claims

This all-or-nothing requirement disregarded the proportionality limits of Federal Rule of Civil Procedure 26(b)(1).

The Order permitted expansive intrusion into Plaintiff's private medical information without meaningful limitation or protection.

Plaintiff attempted to comply in a reasonable and proportional manner. The structure of the Order did not allow for that.

V. DISCOVERY WAS OVERBROAD, INTRUSIVE, AND HARASSING

As reflected in the docket, Defendants engaged in a pattern of discovery demands that exceeded the scope of this case and invaded Plaintiff's privacy.

Defendants sought Plaintiff's entire medical history, personal social media content unrelated to the claims, and tax returns and private business information.

These demands were not narrowly tailored and were disproportionate to the needs of the case.

Plaintiff objected and attempted to limit production to relevant information. The Court permitted these demands to stand.

Plaintiff's resistance to these demands was justified.

VI. DEFENDANTS MADE FALSE STATEMENTS DURING DISCOVERY AND THE COURT FAILED TO ADDRESS THEM

Defendants made false statements during discovery regarding whether Curtiss-Wright received federal funding, and those false statements have not been addressed or corrected by the Court.

Plaintiff specifically requested, in written discovery correspondence, "[a]ll documents reflecting Curtiss-Wright's receipt of Title VI federal funding, including grants, contracts, subcontracts, certifications, or compliance records." This request was not limited to any specific federal agency and clearly sought information regarding any federal funding.

Defendants did not object to the scope of this request and instead stated that they were collecting responsive documents pursuant to the Court's Order.

Case No. 2:25-cv-00405-RMG-MGB

Despite this, Defendants later represented that Curtiss-Wright did not receive federal funding, including through statements attributed to the company's Chief Financial Officer, Eric Cotton. That representation was false.

Plaintiff produced evidence demonstrating that Curtiss-Wright did receive federal funding during the relevant period. Defendants' attempt to reinterpret the scope of Plaintiff's request after the fact does not cure the inaccuracy of their response.

The contradiction between Defendants' statements and Plaintiff's evidence remains unresolved, and the Court has not addressed this issue while recommending dismissal against Plaintiff.

VII. PLAINTIFF SOUGHT TO CORRECT PLEADING DEFICIENCIES

Plaintiff sought leave to file a Fifth Amended Complaint to address alleged deficiencies, including exhaustion of administrative remedies.

Plaintiff also filed a Notice of Right to Sue confirming exhaustion of additional claims.

The Court denied leave to amend based on timing and alleged prejudice, despite the fact that the amendment was based on newly obtained EEOC authorization and involved facts already known to Defendants.

This prevented Plaintiff from proceeding on corrected pleadings.

VIII. DISMISSAL IS NOT JUSTIFIED UNDER THESE CIRCUMSTANCES

This case involves a dispute over the scope of discovery—not a refusal to comply.

Plaintiff participated in discovery, produced relevant information, and asserted reasonable objections.

The recommendation of dismissal is based on Plaintiff's refusal to submit to unrestricted and unjustified disclosure, not on any failure to participate in discovery.

Under these circumstances, dismissal is not warranted.

IX. PLAINTIFF'S FILINGS AND EVIDENCE HAVE NOT BEEN MEANINGFULLY ADDRESSED

Case No. 2:25-cv-00405-RMG-MGB

Plaintiff further objects that the Court has relied on Plaintiff's refusal to comply with demands stemming from a defective subpoena, while simultaneously declining to address the validity of that subpoena.

Defendants issued a subpoena to Plaintiff's treating therapist seeking full psychotherapy records. The subpoena reflects a compliance date of October 31, 2025. However, Defendants mailed the subpoena on or about November 3, 2025—after the compliance date had already passed. The subpoena was therefore expired at the time it was sent and unenforceable.

Plaintiff timely challenged this subpoena through an Emergency Motion to Quash and for Protective Order (ECF 261), raising these defects and seeking judicial intervention.

The Court did not address the validity of the subpoena and instead dismissed Plaintiff's motion as moot.

Despite the subpoena's defects and the absence of any ruling on its validity, Defendants continued to pursue Plaintiff's psychotherapy records, and the Court later relied on Plaintiff's refusal to authorize full disclosure of those records as a basis for recommending dismissal.

Plaintiff cannot be compelled to comply with demands arising from a defective and expired subpoena, and the Court cannot rely on Plaintiff's refusal to comply with such a subpoena while simultaneously declining to rule on its validity.

The record reflects that Plaintiff raised this issue, supported it with evidence, and sought judicial intervention. That issue was not addressed.

Nevertheless, the same underlying demand for Plaintiff's full medical records—originating from that defective subpoena—is now being used against Plaintiff.

Under these circumstances, reliance on Plaintiff's refusal to comply is improper and cannot support dismissal.

X. PLAINTIFF'S FILINGS AND EVIDENCE HAVE NOT BEEN MEANINGFULLY ADDRESSED

Plaintiff further objects that the issues raised throughout her filings have not been meaningfully addressed by the Court.

Case No. 2:25-cv-00405-RMG-MGB

Plaintiff has repeatedly presented evidence contradicting Defendants' statements, objections to overbroad discovery, documentation supporting her claims, and issues affecting the integrity of the discovery process.

These matters have not been resolved or substantively addressed. Instead, Defendants' positions have been allowed to stand while Plaintiff's filings have not received meaningful consideration.

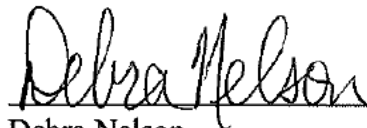
This pattern forms the basis of Plaintiff's pending petition for a Writ.

XI. CONCLUSION

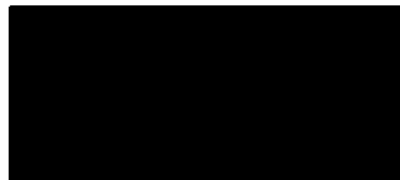
For the foregoing reasons, Plaintiff respectfully requests that the District Court:

1. **Reject the Report and Recommendation (ECF 309)**
2. Deny Defendants' Motion for Sanctions
3. Allow this case to proceed

Respectfully submitted 6th of April, 2026,



Debra Nelson
Plaintiff, Pro Se



Case No. 2:25-cv-00405-RMG-MGB

CERTIFICATE OF SERVICE

I hereby certify that on April 6, 2026, a true and correct copy of the foregoing **Plaintiff's Objections Report and Recommendation (ECF 309)** was served via email, upon the following counsel of record:

T. Chase Samples, Esq.

Email: chase.samples@jacksonlewis.com

Joseph V. Valenza, Esq.

Email: joseph.valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601


Debra Nelson